

Kanika Steels Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 31 May 2016 · Writ-C No. 73471 of 2005 · **Writ dismissed; additional-security and clause 4.20 challenges refused.**

HEADNOTE

An industrial consumer's writ to quash an additional-security bill, strike clause 4.20 of the U.P. Electricity Supply Code, 2005 as inconsistent with section 47 of the Electricity Act, 2003, compel a pre-payment meter, and recover existing security with interest, was dismissed after the Court found no ground for any of the reliefs.

FACTUAL SUMMARY

Kanika Steels, an industrial consumer of Paschimanchal Vidyut Vitran Nigam Ltd., challenged a 1 October 2005 bill demanding additional security of Rs 2,99,062 and a Ministry of Power clarificatory letter of 11 February 2005. It sought to strike clause 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires the Electricity Act, 2003, a pre-payment meter under section 47(5) without security under the repealed law, and refund of Rs 5,16,661 already paid, with 12% interest under section 47(4). None appeared when the petition was called.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security and pre-payment meters

HOLDING

The Court, after perusing the record, found no ground to quash the additional-security demand, declare clause 4.20 of the U.P. Electricity Supply Code, 2005 ultra vires the Electricity Act, 2003, compel a pre-payment meter under section 47(5), or refund existing security with interest under section 47(4). The writ was dismissed and any interim order vacated. ¶ 3-5